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REASONABLE ACCOMMODATIONS

Federal agencies must provide reasonable accommodations to qualified employees or applicants with disabilities, unless to do so would cause undue hardship. In general, an accommodation is a change in the work environment or in the way things are customarily done that would enable an individual with a disability to enjoy equal employment opportunities. There are three categories of reasonable accommodations:

- modifications or adjustments to a job application process to permit an individual with a disability to be considered for a job (such as providing application forms in alternative formats like large print or Braille);
- modifications or adjustments necessary to enable a qualified individual with a disability to perform the essential functions of the job (such as providing sign language interpreters); and
- modifications or adjustments that enable employees with disabilities to enjoy equal benefits and privileges of employment (such as removing physical barriers in an office cafeteria).

DEFINITIONS

Disability means, with respect to an individual—

(i) A physical or mental impairment that substantially limits one or more of the major life activities of such individual;

(ii) A record of such an impairment; or

(iii) Being regarded as having such an impairment as described in paragraph (i) of this section. This means that the individual has been subjected to an action prohibited by the ADA as amended because of an actual or perceived impairment that is not both “transitory and minor.”

(2) An individual may establish coverage under any one or more of these three prongs of the definition of disability, i.e., paragraphs (g)(1)(i) (the “actual disability” prong), (g)(1)(ii) (the “record of” prong), and/or (g)(1)(iii) (the “regarded as” prong) of this section.

(3) Where an individual is not challenging a covered entity's failure to make reasonable accommodations and does not require a reasonable accommodation, it is generally unnecessary to proceed under the “actual

disability” or “record of” prongs, which require a showing of an impairment that substantially limits a major life activity or a record of such an impairment. In these cases, the evaluation of coverage can be made solely under the “regarded as” prong of the definition of disability, which does not require a showing of an impairment that substantially limits a major life activity or a record of such an impairment. An individual may choose, however, to proceed under the “actual disability” and/or “record of” prong regardless of whether the individual is challenging a covered entity's failure to make reasonable accommodations or requires a reasonable accommodation.

(h) Physical or mental impairment means—

(1) Any physiological disorder or condition, cosmetic disfigurement, or anatomical loss affecting one or more body systems, such as neurological, musculoskeletal, special sense organs, respiratory (including speech organs), cardiovascular, reproductive, digestive, genitourinary, immune, circulatory, hemic, lymphatic, skin, and endocrine; or

(2) Any mental or psychological disorder, such as an intellectual disability (formerly termed “mental retardation”), organic brain syndrome, emotional or mental illness, and specific learning disabilities.

(i) Major life activities —

(1) In general. Major life activities include, but are not limited to:

(i) Caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, sitting, reaching, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, interacting with others, and working; and

(ii) The operation of a major bodily function, including functions of the immune system, special sense organs and skin; normal cell growth; and digestive, genitourinary, bowel, bladder, neurological, brain, respiratory, circulatory, cardiovascular, endocrine, hemic, lymphatic, musculoskeletal, and reproductive functions. The operation of a major bodily function includes the operation of an individual organ within a body system.

The term “qualified,” with respect to an individual with a disability, means that the individual satisfies the requisite skill, experience, education and other job-related requirements of the employment position such individual holds or desires and, with or without reasonable accommodation, can perform the essential functions of such position.

Interactive Process: To determine the appropriate reasonable accommodation it may be necessary for the agency to initiate an informal, interactive process with the individual with a disability in need of the accommodation. This process should identify the precise limitations resulting from the disability and potential reasonable accommodations that could overcome those limitations.

UNDUE HARDSHIP:

(1) In general. Undue hardship means, with respect to the provision of an accommodation, significant difficulty or expense incurred by a covered entity, when considered in light of the factors set forth in paragraph (p)(2) of this section.

(2) Factors to be considered. In determining whether an accommodation would impose an undue hardship on a covered entity, factors to be considered include:

(i) The nature and net cost of the accommodation needed under this part, taking into consideration the availability of tax credits and deductions, and/or outside funding;

(ii) The overall financial resources of the facility or facilities involved in the provision of the reasonable accommodation, the number of persons employed at such facility, and the effect on expenses and resources;

(iii) The overall financial resources of the covered entity, the overall size of the business of the covered entity with respect to the number of its employees, and the number, type and location of its facilities;

(iv) The type of operation or operations of the covered entity, including the composition, structure and functions of the workforce of such entity, and the geographic separateness and administrative or fiscal relationship of the facility or facilities in question to the covered entity; and

(v) The impact of the accommodation upon the operation of the facility, including the impact on the ability of other employees to perform their duties and the impact on the facility's ability to conduct business.

Qualification Standards: The personal and professional attributes including the skill, experience, education, physical, medical, safety and other requirements established by a covered entity as requirements which an individual must meet in order to be eligible for the position held or desired.

Direct Threat: A significant risk of substantial harm to the health or safety of

the individual or others that cannot be eliminated or reduced by reasonable accommodation. The determination that an individual poses a “direct threat” shall be based on an individualized assessment of the individual's present ability to safely perform the essential functions of the job. This assessment shall be based on a reasonable medical judgment that relies on the most current medical knowledge and/or on the best available objective evidence. In determining whether an individual would pose a direct threat, the factors to be considered include:

- (1) The duration of the risk;**
- (2) The nature and severity of the potential harm;**
- (3) The likelihood that the potential harm will occur; and**
- (4) The imminence of the potential harm.**

PROCEDURES ON REASONABLE ACCOMMODATIONS

- An employee or applicant with a disability, family member, health professional or other representative who is acting on behalf of the employee/applicant may initiate a request for reasonable accommodation orally or in writing.
- An individual's oral request will start the reasonable accommodation process. However, for record keeping purposes, the requestor is required to submit a completed NCD Form NCD 7-100-1 contained in this Appendix within one week of an oral request. The time limit for providing or denying an accommodation request starts as soon as the accommodation is first requested, whether the request is initiated orally or submitted in written form.
- A request for an accommodation is an oral or written statement that an employee or applicant needs a modification or adjustment to the work environment, to the application process, or access to a benefit or privilege of employment because of limitations imposed on the individual by a disability. A request does not have to use any special words. For example, an employee may tell her supervisor, "I'm having trouble getting to work at my scheduled starting time because of medical treatment I am undergoing," or "I need six weeks off to get treatment for a back problem" or "my wheelchair cannot fit under the desk in my office." All of the proceeding statements would constitute requests for reasonable accommodations. Additionally, requests for reasonable accommodations often come from an employee's or applicant's family or caregiver. The reasonable accommodation process begins as soon as the oral or written request is made. A requestor may seek a reasonable accommodation whenever they choose, even if they have not previously disclosed a disability.

- A request for a reasonable accommodation should be made to the requesting employee's supervisor or in their absence, the next in line supervisor.
- An individual does not need to have a particular accommodation in mind before making a request.
- The requesting employee's supervisor will evaluate the request and engage in an interactive discussion about the accommodation request with the requesting employee to reach a decision. The final decision-maker is employee's supervisor. Decision-makers must communicate with individuals who have requested an accommodation early in the interactive process and periodically throughout the process. If the supervisor requires assistance with an accommodation request, he/she should contact NCD's HR service provider GSACABS.
- Unless there are extenuating circumstances, e.g. necessary medical documentation that is necessary or delayed or services that are not easily/timely available, within 20 business days (1 month) from the date the completed request was sent to the requesting employee's supervisor, the accommodation, if determined to be reasonable, should be provided.
- The agency will not be expected to adhere to its usual timelines if the employee or applicant's health professional fails to provide needed documentation in a timely manner. The agency may toll the timeframes once it has appropriately requested medical documentation. However, the processing timeframe resumes as soon as medical documentation is received.
- Where there is a delay in either processing a request for accommodation or providing an accommodation, the agency must notify the individual of the reason for the delay, including any extenuating circumstances that justify the delay.
- In certain circumstances, reasonable accommodations may be expedited, such as where the reasonable accommodation is needed to enable an individual to apply for a job; or is needed for a specific activity that is scheduled to occur shortly.
- Where an accommodation can be provided in less than the maximum time frame, failure to provide the accommodation in a prompt manner may result in a violation of the Rehabilitation Act.
- When all the facts and circumstances known to the supervisor make it is likely that the requesting employee will be entitled to an accommodation, but the accommodation cannot be provided immediately, NCD s required to provide the

individual with an interim accommodation, absent undue hardship.

- If the requesting employee's disability and/or need for accommodation are not obvious or already known, his/her supervisor is entitled to ask for and receive medical information showing that the requestor has a covered disability that requires an accommodation.
- A disability is obvious or already known when it is clearly visible or the individual previously provided medical information showing that the condition met the Rehabilitation Act definition.
- The agency has the right to request relevant supplemental medical information if the first submission was insufficient.
- The agency has the right to have medical information reviewed by a medical expert of the agency's choosing at the agency's expense.
- It is the responsibility of the applicant/employee to provide appropriate medical information requested by NCD where the disability and/or need for accommodation are not obvious or already known or more detail is needed on limitations to assist the supervisor in determining the appropriate accommodation or accommodation options with the employee.
- If a supervisor requires medical documentation, he/she will work with NCD's HR provider to prepare the request for medical information.
- Provided medical information must be sufficient to explain: (1) the nature of the individual's disability; (2) the need for reasonable accommodation; and (3) how the accommodation, if any, will assist the individual to apply for a job, perform the essential functions of a job, or enjoy the benefits and privileges of the workplace.
- Confidential medical information may be disclosed by NCD under limited circumstances including: (1) supervisors and managers who need to know may be told about necessary restrictions and about the necessary accommodation(s); (2) first aid and safety personnel may be told if the disability might require emergency treatment; (3) government officials to investigate the agency's compliance with the Rehabilitation Act; (4) workers' compensation offices or insurance carriers; and (5) agency EEO officials may be given the information to maintain records.

When an individual requests a type of accommodation that will be needed on a repeated basis (e.g., a sign language interpreter, CART Services, or readers), the agency may not require the individual to submit a written request for each time the accommodation is needed. Once the accommodation is approved for the first time, the employee may obtain the accommodation by notifying their supervisor.

- NCD is not required to create a position as an accommodation but will consider reassignment to a vacant position for which an employee is qualified, and not just permission to compete for such position as a reasonable accommodation, when it determines that no other reasonable accommodation will permit an employee with a disability to perform the essential functions of his or her current position. Supervisors may explore current vacancies by consulting with the RAC and CHCO.
- If there are extenuating circumstances that will inhibit either processing a request for or delivering a reasonable accommodation, the supervisor or manager handling the request will notify the requestor promptly and keep the employee informed of the approximate date on which the agency may complete the process or issue a decision and investigate the possibility of temporary measures that could be taken to assist the requestor. Any changes or developments should be communicated promptly to the requestor.
- Requesting employees may track the processing of requests for reasonable accommodation by conferring with their supervisor.
- When an accommodation is granted or denied, the Executive Director will complete the "Reasonable Accommodation Information Report" (Appendix B) and maintain it for future reporting.

When a request is denied, the requestor will be informed by a written notice (see Appendix C). The notice will specify the reasons for denying the request; for example, why the medical documentation is inadequate to establish that the individual has a disability or needs reasonable accommodation; why the requested accommodation would not be effective; or, why the accommodation would pose an undue hardship to the agency. It will explain the right to file an EEO complaint and rights to pursue an MSPB appeal. Within five business days upon receipt of the denial notice, the requestor may submit a reconsideration request to the Chairperson or Executive Director (See Appendix C for appropriate official). New information and justification should be presented to support the reconsideration request. The Chairperson/Executive Director will issue a decision on reconsideration within 10 business days after receipt of the individual's request. Pursuing reconsideration and any informal dispute resolution procedures does not toll the time limits for initiating statutory claims.

- If the resources available to the agency as a whole, excluding those designated by statute for a specific purpose that does not include reasonable accommodation, would enable it to provide an effective reasonable accommodation without undue hardship, requests for reasonable accommodation are not denied for reasons of cost, and individuals with disabilities are not excluded from employment due to the anticipated cost of a reasonable accommodation.

- The agency must provide a job applicant, or employee denied a reasonable accommodation with a written notice at the time of denial and denial notices will be provided in an accessible format when requested.
- Written denials of requests will include instructions on how to file an EEO complaint and the individual must initiate contact with an EEO Counselor within 45 days of the denial, regardless of whether the applicant or employee participates in an informal dispute resolution process.
- The agency encourages the use of voluntary, informal dispute resolution processes to allow individuals with disabilities to obtain prompt reconsideration of denials of accommodation requests.
- If an individual wishes to request reconsideration of a denial, he/she may take the following steps:
 1. First, ask the decision maker to reconsider his/her denial. Additional information may be presented to support this request.
 2. If the decision maker does not reverse the denial and the decision maker was the Executive Director; the individual can ask the Chairperson to do so.
- If an individual wishes to file an EEO complaint, or pursue MSPB grievance procedures, he /she must contact an EEO counselor through Agency Liaison Division within 45 days from the date of the notice of denial of reasonable accommodation.

COSTS

- The agency's supervisors and individuals with disabilities should be aware of resource materials available on EEOC's website, e.g., *Enforcement Guidance: Disability-Related Inquiries and Medical Examinations of Employees Under the Americans With Disabilities Act* (July 27, 2000), and *Enforcement Guidance on Reasonable Accommodation and Undue Hardship Under the Americans With Disabilities Act* (revised October 17, 2002). These documents can also help identify and evaluate possible accommodations.
- Supervisors who grant or deny accommodation requests or make hiring decisions need to understand how to arrange to use agency resources to provide an accommodation.

INFORMATION TRACKING

- Applicants and employees may contact NCD's Executive Director to track the processing of requests for reasonable accommodation at atorresdavis@ncd.gov.

- The agency will keep records that it may use to determine whether it complies with the nondiscrimination and affirmative action requirements imposed under Section 501 and to make such records available to EEOC upon EEOC's request.
- The agency will record the following information: the specific reasonable accommodation; the job (occupational series, grade level, and agency component) sought by requesting applicant or held by the employee; whether the accommodation was needed to apply for a job, perform the essential functions of a job, or enjoy the benefits and privileges of employment; whether the request was granted or denied; the identity of the deciding official; the basis of the denial; and the number of days taken to process the request.

NCD FORM 7-100-1

REQUEST FOR REASONABLE ACCOMMODATION

This form will be provided in alternative forms that are accessible to individuals with disabilities upon request.

1. Name of Employee/Applicant: _____
2. Telephone no. _____
3. Office/Organization: _____
4. ACCOMMODATION REQUESTED. Please be as specific as possible (e.g., adaptive equipment, reader, or interpreter.)
5. REASON FOR REQUEST. (If accommodation is time-sensitive, please explain.)
 - () Application Process
 - () Performing job functions or accessing the work environment
 - () Accessing a benefit or privilege of employment (e.g., attending a training program)
6. Explain why the accommodation is needed and how it will help you to accomplish the reason chosen above.

Employee or Applicant Signature: _____ Date: _____

Supervisor signature: _____ Date: _____

This form is required to be kept confidential by the supervisor and management.

APPENDIX B

NCD FORM 7-100-2

REASONABLE ACCOMMODATION INFORMATION REPORT FOR SUPERVISORS

Name of Employee/Applicant:

Position Title:

Office:

Telephone:

1. Reasonable accommodation needed for (check one):

() Application Process

() Performing job functions or accessing the work environment

() Accessing a benefit or privilege of employment (e.g., attending a training program or special event)

2. Type of reasonable accommodation requested (e.g., adaptive equipment, staff assistant, removal of architectural barrier):

3. Type of reasonable accommodation provided (if different from what was requested):

4. Reasonable accommodation (check one) indicating that the claim was either:

() Approved /Date: _____ or () Denied /Date: _____

(If denied, attach copy of the written denial letter/memo)

5. Date reasonable accommodation provided _____

6. If time limits outlined in the reasonable accommodation procedures were not met, please explain why.

7. Explain the medical information and documents required to process this request, if applicable.

8. Sources of technical assistance, if any, consulted in trying to identify possible reasonable accommodations (e.g., Job Accommodation Network, Disability Program Manager, and Disability Organization).

Comments:

Submitted by: _____ Date: _____

**ATTACH COPIES OF ALL DOCUMENTS OBTAINED OR DEVELOPED IN
PROCESSING THIS REQUEST**

APPENDIX C

NCD FORM 7-100-3

DENIAL OF REASONABLE ACCOMMODATION REQUEST

(Must complete items 1-4)

To: (Name of the requestor):

Type(s) of reasonable accommodation requested:

Request for reasonable accommodation denied because (may check more than one item):

_____ Accommodation ineffective

_____ Accommodation would cause undue hardship

_____ Medical documentation inadequate

_____ Accommodation would require removal of an essential function

_____ Accommodation would require lowering of performance or production standard

_____ Other (please specify) _____

Specify reason(s) for the denial of reasonable accommodation (e.g., why accommodation is ineffective or causes undue hardship):

If the requester proposed one type of reasonable accommodation which is being denied but rejected an offer of a different type of reasonable accommodation, explain both the reasons for denial of the requested accommodation and why you believe the chosen accommodation would be effective:

Name, Title and Signature of Deciding Official: _____

Date: _____